

1.

CASE #	CASE NAME	HEARING NAME
CVRI2203893	BARRALES VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO COMPEL ATTENDANCE AT DEPOSITION, DEPOSITION ATTENDANCE OF CUSTODIAN OF RECORDS OF DEFENDANT AMERICAN HONDA MOTOR CO., INC., AND REQUEST FOR SANCTIONS BY DOMINGO BARRALES

Tentative Ruling:

GRANT the Motion to Compel.

Defendant American Honda Motor Co's (AHMC) custodian(s) of records is Ordered to sit for deposition within 30 days. AHMC is sanctioned in the sum pf \$1,060, payable to Plaintiff's counsel within 30 days.

Plaintiff is entitled to properly authenticated documents from Honda. Honda's objections to the matters for examination are not well founded. Plaintiff has offered to accept a business records affidavit for these documents under Evid. Code § 1561 or by way of stipulation, but Honda has refused. Moreover, it appears that Honda has not provided proper responses to Plaintiff's RFA's. Sanctions have been awarded because AHMC has not acted with substantial justification.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500879	UR VILLAGE LLC VS LOOK CINEMAS VII, LLC	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON 1ST AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$35,000) OF UR VILLAGE LLC BY UR VILLAGE LLC

Tentative Ruling:

GRANT the Motion for Summary Judgment.

GRANT Plaintiff's Request for Judicial Notice of Exhibits 12, 18, and 20. DENY Plaintiff's Request for Judicial Notice of Exhibit 19. GRANT Defendant's Request for Judicial Notice of Exhibits A and B. SUSTAIN Plaintiff's Evidentiary Objections Nos. 3-4, 6-11, 13-17 and 19-21. The court declines to consider Plaintiff's remaining evidentiary objections as they are not material to the disposition of the motion. (CCP § 437c(q).)

Plaintiff filed the Complaint asserting causes of action against Defendants for Breach of Lease (against Look Cinemas) and Breach of Guaranty (against Look Brands) on February 13, 2025. Plaintiff alleges that Defendants leased the premises on September 23, 2022, and that the Lease terminated on February 14, 2025, after Plaintiffs issued and

served their Notice of Belief of Abandonment. Defendants do not dispute that they entered into the Lease and Guaranty, but dispute Plaintiff's calculation of damages under Paragraph 26(b)(iv) of the Lease (Plaintiff's Exhibit 1) and Civ. Code § 1951.2. It is also undisputed that the premises remain unoccupied today.

In Reply, Plaintiff has now amended the amount it seeks by way of this action to a total of \$7,074,761.20 in damages, calculated as: (1) \$999,922.54 of past-due rent; (2) \$93,066.43 interest; and (3) \$5,981,772.32 present value of future rent at 4.75%. (Reply, p.12.)

Defendants attempt to create a triable issue of material fact by stating that Plaintiff's mitigation efforts were not economically reasonable, and offering the opinion of a real estate consultant, Joseph Harberg, who opines "that the Premises are readily capable of being relet during the remaining Lease term at a gross rental rate reasonably expected to equal or exceed the average LOOK contract rate" (Harberg Decl. Para. 18), but Harberg's declaration fails to *prove* that any rental loss could reasonably be avoided to establish an offset, as required by Civ. Code § 1951.2(c)(1).

Defendants have failed to raise a triable issue of material fact as to the calculation of damages. Grant the Motion for Summary Judgment.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601881	SMITH VS HYUNDAI MOTOR AMERICA.	MOTION TO COMPEL ARBITRATION BY HYUNDAI MOTOR AMERICA.

Tentative Ruling:

DENY the Motion to Compel Arbitration. GRANT Defendant's Request for Judicial Notice.

Defendant Hyundai Motor America (Hyundai) moves to compel arbitration of this lemon law action pursuant to two separate agreements: an express written warranty in the owner's handbook (the "Handbook") that accompanied the sale of the vehicle, and the Bluelink Connected Services Agreement (CSA). Both agreements contain an arbitration clause.

The motion fails because Hyundai cannot show the existence of a valid arbitration agreement. Specifically, Hyundai fails to establish mutual assent. There is no evidence that Plaintiff signed the relevant pages of the Handbook where the arbitration clause is found. There is no evidence that Plaintiff signed an acknowledgement of receipt of the Handbook. There is no evidence that the Handbook was even presented to Plaintiff. There is no declaration by a Hyundai representative stating that the Handbook was provided to Plaintiff, or that the Handbook is routinely provided to all Hyundai purchasers, or that the Warranty Handbook is even applicable to Plaintiff's vehicle. Hyundai's equitable estoppel argument also fails because Hyundai has failed to show that the Handbook is an enforceable contract. Hyundai also fails to meet its initial burden on the motion with respect to the arbitration clause under the CSA. Hyundai again fails to show mutual assent. There is nothing signed by Plaintiff in the CSA. Moreover, even assuming that there was mutual assent, the CSA is inapplicable because Plaintiff does not complain